IN THE BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

KING'S BENCH DIVISION

CIRCUIT COMMERCIAL COURT (KBD)

Claim No. CC-2025-LON-000512

B E T W E E N :

WEXFORD CONSUMER BRANDS LIMITED

Claimant

- and -

PINNACLE SYSTEMS LIMITED

Defendant

ORDER

BEFORE His Honour Judge Pelham KC sitting in the Circuit Commercial Court (KBD) at the Rolls Building, London

UPON the Costs and Case Management Conference held on 18 September 2025

AND UPON hearing leading counsel for the Claimant and counsel for the Defendant

AND UPON the parties having agreed directions save as to the issue of expert evidence

IT IS ORDERED THAT:

Disclosure

1. Extended Disclosure under Practice Direction 57AD shall be given by reference to the agreed List of Issues for Disclosure. Disclosure Models B and C shall apply as set out in the agreed Disclosure Review Document. The parties shall give Extended Disclosure by 4pm on 12 December 2025.

2. The parties shall use reasonable endeavours to agree search terms, custodians and date ranges by 17 October 2025, and shall co-operate in relation to the disclosure of structured data and system logs.

Witness evidence

3. Each party shall serve signed statements of its witnesses of fact, complying with Practice Direction 57AC, by 4pm on 30 January 2026. Supplemental statements, if any, by 27 February 2026.

Expert evidence

4. Each party has permission to rely on the written and oral evidence of one expert in the field of IT and software implementation. Reports shall be exchanged by 4pm on 27 March 2026.

5. The experts shall hold a without-prejudice discussion and file a joint statement of agreement and disagreement by 4pm on 24 April 2026.

ADR

6. By 4pm on 13 February 2026 the parties shall, at a stay of one month for the purpose, attempt to settle the claim by mediation or other ADR. Any party not engaging in ADR proposed by another shall, not less than 21 days before trial, file a witness statement giving its reasons (such statement not to be shown to the trial judge until the question of costs).

Costs budgeting and trial

7. The Court records the agreed and approved costs budgets in the sums set out in the parties' Precedent H budgets as varied at the hearing.

8. The claim shall be listed for trial before a Circuit Commercial Court judge with a time estimate of 5 days (plus 1 day judicial pre-reading) in a window opening on 19 April 2027. A pre-trial review shall be listed approximately 8 weeks before trial.

9. Costs of and occasioned by the CCMC shall be costs in the case.

Dated 18 September 2025

BY THE COURT